

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/19/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: C25-03317
CASE NAME: LEONARDO BROWN VS. ANTHONY WHITE
*HEARING ON MOTION IN RE: FOR PRELIMINARY INJUNCTION
FILED BY:
***TENTATIVE RULING**

Parties have informed the court that they have tentatively settled the matter and wish to continue the motion.

The matter has already been rescheduled, and the parties have been notified.

This date is vacated.

2. 9:00 AM CASE NUMBER: L22-01581
CASE NAME: ESPINOZA BAIL BONDS, INC VS. JACQUELINE ROBLES
*HEARING ON MOTION IN RE: MOTION TO AMEND JUDGMENT
FILED BY: ESPINOZA BAIL BONDS, INC
***TENTATIVE RULING**

Plaintiff filed a Motion to Amend Judgment. The Motion was served on the Defendant by mail at an

address where Defendant was served with process by virtue of substitute service.

The Motion is unopposed.

Background

On 12/5/23, counsel for Plaintiff filed a Default Judgment identifying the Plaintiff as a corporation, namely, Espinoza Bail Bonds, Inc. Subsequently, per Plaintiff's Motion and accompanying declaration, counsel for Plaintiff learned that Plaintiff's correct name is Jose Espinoza, dba Espinoza Bail Bonds.

Analysis

California Code of Civil Procedure §187 provides that a California court may use "all the means necessary" when the course of proceeding is not specifically provided for by the Code of Civil Procedure or other statute to carry its jurisdiction into effect:

“... When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code.” Code of Civil Procedure Section 187.

California Code of Civil Procedure § 473 (d) further provides that the court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

In the instant matter, the entry of Plaintiff as a corporate entity in the Judgment was clearly a clerical error. This court will exercise discretion and grant Plaintiff leave to amend the Judgment and list Plaintiff by the appropriate name.

Disposition

Plaintiff's Motion is granted.

Plaintiff is to file a proposed order and judgment.

3. 9:00 AM CASE NUMBER: L24-08852
CASE NAME: TWO JINN, INC. VS. SOPHIA GARCIA